

MASTER TECHNOLOGY AND MANAGED SERVICES AGREEMENT

Synthetic Evaluation Document — Not a Real Commercial Agreement

Agreement Reference: TIL/ADIS/MSA/2026-08

Effective Date: 1 September 2026

This Master Technology and Managed Services Agreement ("**Agreement**") is entered into on the Effective Date by and between:

Tata Industries Limited, a company incorporated under the laws of India, having its registered office at Mumbai, Maharashtra ("**Customer**" or "**Tata**"); and

Apex Digital Infrastructure Services Private Limited, a company incorporated under the Companies Act, 2013, having its registered office at Bengaluru, Karnataka ("**Vendor**" or "**Apex**").

Tata and Apex are individually referred to as a "**Party**" and collectively as the "**Parties**".

This Agreement establishes the terms under which Vendor shall provide technology infrastructure, cloud operations, cybersecurity monitoring, data-processing, application support, managed services, professional services, and related deliverables to Customer.

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

For purposes of this Agreement:

"Affiliate" means any entity that directly or indirectly controls, is controlled by, or is under common control with a Party, provided that an entity shall be considered an Affiliate only for so long as such control exists.

"Applicable Law" means all applicable Indian and foreign laws, statutes, rules, regulations, governmental notifications, judicial orders, regulatory directions, industry standards having mandatory force, and binding requirements applicable to a Party or the Services.

"Business Day" means a day other than Saturday, Sunday, or a public holiday in Mumbai, Maharashtra.

"Confidential Information" means all non-public technical, commercial, financial, operational, legal, customer, employee, security, business, pricing, architectural, or strategic information disclosed by one Party to the other, whether orally, electronically, visually, or in documentary form.

"Customer Data" means all data, records, documents, files, personal information, transaction records, logs, metadata, credentials, business information, and other information provided by or on behalf of Customer or generated through Customer's use of the Services.

"Deliverable" means any software, configuration, report, documentation, design, source code, integration, workflow, model, dashboard, data structure, or other work product specifically developed by Vendor for Customer under a Statement of Work.

"Documentation" means technical manuals, operating procedures, architectural documents, configuration records, user manuals, runbooks, security documentation, and other documentation supplied by Vendor.

"Incident" means any event that compromises or may reasonably compromise the confidentiality, integrity, availability, authenticity, or lawful processing of Customer Data or the Services.

"Material Breach" means a breach which materially impairs the value, security, availability, legality, or intended use of the Services and, where capable of cure, remains uncured after the applicable cure period.

"Personal Data" shall have the meaning assigned to it under Applicable Law.

"Services" means the services described in the applicable Statement of Work ("**SOW**") and Schedule 1.

"Service Level Agreement" or "**SLA**" means the service-level requirements specified in Schedule 2.

"Subcontractor" means any third party engaged by Vendor to perform any material portion of the Services.

1.2 Order of Precedence

In the event of inconsistency among the contractual documents, the following hierarchy shall apply:

1. a mutually executed amendment expressly stating that it overrides this Agreement;
2. the applicable SOW;
3. Schedule 4 — Data Protection and Security Addendum;
4. Schedule 2 — Service Level Agreement;
5. Schedule 3 — Pricing;
6. Schedule 1 — Statement of Services;
7. this Agreement.

Notwithstanding the foregoing, a provision relating to **confidentiality, information security, data protection, intellectual property, indemnity, limitation of liability, or audit rights** contained in this Agreement shall prevail over an inconsistent SOW unless the SOW expressly identifies the provision being overridden.

2. SCOPE OF SERVICES

2.1 General Services

Vendor shall provide:

- a. managed cloud infrastructure services;
- b. application monitoring and support;
- c. infrastructure monitoring;
- d. cybersecurity monitoring;
- e. vulnerability management;
- f. backup and disaster-recovery operations;
- g. data processing and transformation;
- h. technical support;
- i. systems integration;
- j. professional services;
- k. incident management;
- l. configuration management; and
- m. such additional services as may be identified in an SOW.

Vendor shall perform the Services in accordance with this Agreement, the applicable SOW, Documentation, SLAs, Applicable Law, and generally accepted industry practices.

3. STATEMENTS OF WORK

3.1 SOW Requirement

No material Services shall commence unless documented in an SOW signed by authorized representatives of both Parties.

Each SOW shall specify, where applicable:

- scope;
- assumptions;
- deliverables;
- milestones;
- acceptance criteria;
- dependencies;
- fees;
- service levels;
- resources;
- implementation schedule;
- data-processing requirements;
- applicable locations;
- security requirements; and
- termination provisions specific to that SOW.

3.2 Scope Ambiguity

If an SOW contains an activity reasonably necessary to achieve the stated business objective but does not expressly allocate responsibility for that activity, Vendor shall notify Customer within five Business Days.

Failure to provide such notice shall constitute Vendor's acceptance that the activity is included within the Services at no additional charge, provided that the activity is reasonably incidental to the agreed scope.

4. PERFORMANCE OBLIGATIONS

Vendor represents and warrants that:

- a. the Services shall be performed with reasonable skill, care, diligence, and professional competence;
- b. personnel assigned to the Services shall possess appropriate qualifications;
- c. Vendor shall maintain appropriate technical and organizational measures;
- d. the Services shall materially conform to applicable specifications;
- e. Vendor shall not knowingly introduce malicious code;
- f. Vendor shall maintain appropriate business continuity arrangements;
- g. Vendor shall comply with Applicable Law;
- h. Vendor shall maintain sufficient resources to perform its obligations; and

i. Vendor shall promptly disclose any circumstance that may materially impair performance.

Vendor's obligation to disclose shall include circumstances relating to cybersecurity incidents, regulatory investigations, material subcontractor failures, insolvency risk, and loss of required licenses.

5. SERVICE LEVELS

5.1 Availability

For Critical Production Services, Vendor shall maintain monthly availability of not less than **99.90%**.

Availability shall be calculated as:

Available Minutes minus Unplanned Downtime, divided by Available Minutes, multiplied by 100.

Scheduled maintenance approved by Customer shall not constitute Unplanned Downtime.

5.2 Incident Response

Severity	Example	Initial Response	Target Restoration
P1 Critical	Production outage / material security incident	15 minutes	4 hours
P2 High	Major functionality unavailable	30 minutes	8 hours
P3 Medium	Material degradation	4 hours	2 Business Days
P4 Low	Minor issue	1 Business Day	5 Business Days

5.3 Service Credits

If Vendor fails to meet the SLA:

- 99.90%–99.50% availability: 5% monthly service credit;
- 99.49%–99.00%: 10%;
- 98.99%–98.00%: 15%;
- below 98.00%: 25%.

Service credits shall be Customer's exclusive monetary remedy for ordinary SLA failures, **except where the failure constitutes a Material Breach, security incident, confidentiality breach, or gives rise to an indemnification obligation.**

The maximum aggregate service credit for any calendar month shall be 25% of the monthly recurring fee.

6. CHANGE CONTROL

Neither Party shall be required to implement a material change in scope without a written change request.

A Change Request shall identify:

1. requested change;
2. reason;
3. impact;
4. implementation date;
5. resource requirements;
6. pricing impact;
7. security impact;
8. regulatory impact; and
9. revised acceptance criteria.

Vendor shall not implement a material production change without Customer's written approval.

Emergency changes may be implemented without prior approval where reasonably necessary to prevent imminent security, safety, regulatory, or availability risks, provided that Vendor notifies Customer within two hours.

7. FEES AND PAYMENT

Customer shall pay Vendor the fees specified in Schedule 3.

Invoices shall be submitted monthly in arrears.

Customer shall pay undisputed amounts within **45 days** of receipt of a valid invoice.

Customer may withhold disputed amounts provided that:

- a. Customer gives written notice identifying the disputed amount;
- b. Customer pays all undisputed amounts; and
- c. the Parties cooperate in good faith to resolve the dispute.

Vendor may not suspend Critical Production Services solely because a payment dispute remains unresolved.

8. TAXES

Fees exclude applicable indirect taxes unless expressly stated otherwise.

Each Party shall comply with its tax obligations.

Vendor shall provide documentation reasonably required for Customer to claim applicable tax credits.

Customer may deduct taxes required to be withheld by Applicable Law and shall provide evidence of such withholding.

9. AUDIT RIGHTS

Customer may, upon reasonable notice, audit Vendor's compliance with:

- this Agreement;
- security obligations;
- data protection requirements;
- SLA obligations;
- invoicing;
- subcontractor controls;
- business continuity requirements;
- access controls; and
- regulatory requirements.

Customer may conduct up to **two routine audits per contract year**.

Additional audits may be conducted where:

- a. a Security Incident has occurred;
- b. a regulator requires verification;
- c. there is reasonable evidence of material non-compliance; or
- d. Customer reasonably believes Customer Data may have been compromised.

Vendor shall retain relevant records for **seven years** after creation unless a longer period is required by Applicable Law.

10. INFORMATION SECURITY

Vendor shall maintain an information-security program appropriate to the nature and sensitivity of the Services.

At minimum, Vendor shall implement:

- multi-factor authentication;
- least-privilege access;
- encryption in transit;
- encryption at rest;
- privileged-access monitoring;
- vulnerability management;
- endpoint protection;
- logging and monitoring;
- secure backup;
- security awareness training;
- incident response procedures;
- access reviews; and
- secure disposal procedures.

Vendor shall not store Customer credentials in plaintext.

Privileged access to Customer environments shall be individually attributable to a named person.

Shared administrative accounts shall be prohibited except where technically unavoidable and approved by Customer.

11. SECURITY INCIDENTS

Vendor shall notify Customer of a confirmed or reasonably suspected Security Incident **without undue delay and in any event within four hours** after becoming aware of the Incident.

The notification shall contain, to the extent known:

1. date and time;
2. affected systems;
3. nature of the Incident;
4. categories of affected data;
5. likely consequences;
6. containment actions;
7. remediation actions; and
8. responsible incident coordinator.

Vendor shall provide updates at least every 12 hours for a continuing P1 Security Incident unless otherwise agreed.

Vendor shall preserve relevant forensic evidence.

Vendor shall not make a public statement concerning a Security Incident involving Customer without Customer's prior written approval, except where disclosure is legally mandatory.

12. DATA PROTECTION

Vendor shall process Customer Data solely:

- a. to perform the Services;
- b. on documented instructions from Customer; or
- c. as required by Applicable Law.

Vendor shall not:

- sell Customer Data;
- use Customer Data for unrelated advertising;
- disclose Customer Data to unauthorized third parties;
- combine Customer Data with unrelated datasets for commercial purposes; or
- use Customer Data to train a publicly available artificial intelligence model without Customer's prior written consent.

Vendor may use aggregated, anonymized operational statistics for service improvement provided that such statistics cannot reasonably be used to identify Customer, its personnel, customers, transactions, or confidential operations.

13. CROSS-BORDER DATA TRANSFERS

Vendor shall not transfer Customer Data outside India without:

1. Customer's prior written approval; and
2. compliance with Applicable Law.

Where cross-border processing is approved, Vendor shall maintain appropriate contractual, technical, and organizational safeguards.

Vendor shall maintain an up-to-date list of countries from which Customer Data may be accessed.

14. SUBPROCESSORS AND SUBCONTRACTORS

Vendor shall remain fully responsible for all acts and omissions of its Subcontractors.

Vendor may use Subcontractors identified in an approved subcontractor register.

For any new material Subcontractor, Vendor shall provide at least **30 days' prior written notice**.

Customer may object on reasonable information-security, regulatory, confidentiality, or operational grounds.

If the Parties cannot resolve the objection within 20 Business Days, Customer may require Vendor to use a reasonably equivalent alternative Subcontractor.

Vendor shall ensure every Subcontractor handling Customer Data is contractually bound to obligations no less protective than those contained in this Agreement.

15. INTELLECTUAL PROPERTY

15.1 Background IP

Each Party retains ownership of intellectual property owned or developed independently of this Agreement.

15.2 Customer Materials

Customer retains all rights in Customer Data, Customer trademarks, Customer-provided materials, and Customer-owned systems.

15.3 Bespoke Deliverables

Subject to payment of applicable fees, Customer shall own all Deliverables specifically created exclusively for Customer and identified as bespoke Deliverables in an SOW.

Vendor shall execute documents reasonably required to perfect such ownership.

15.4 Vendor Tools

Vendor retains ownership of:

- pre-existing software;
- reusable libraries;
- frameworks;

- methodologies;
- generic utilities;
- know-how;
- templates;
- development tools; and
- generalized technical concepts.

Where a Vendor Tool is embedded in a Deliverable, Vendor grants Customer a perpetual, worldwide, non-exclusive, royalty-free license to use the embedded Vendor Tool solely as necessary to operate and receive the benefit of the Deliverable.

15.5 Residual Knowledge

Nothing prevents Vendor personnel from using generalized skills, knowledge, experience, and ideas retained in unaided memory, provided that such use does not disclose Customer Confidential Information or reproduce Customer-specific proprietary materials.

16. OPEN-SOURCE SOFTWARE

Vendor shall not incorporate open-source software into a Deliverable where the applicable license would require Customer to:

- a. disclose proprietary source code;
- b. license proprietary software under reciprocal terms;
- c. distribute proprietary components without restriction; or
- d. provide rights broader than those expressly granted under this Agreement,

unless Customer provides prior written approval.

Vendor shall maintain an open-source software inventory for material Deliverables.

17. ARTIFICIAL INTELLIGENCE AND MACHINE LEARNING

Where Vendor uses artificial intelligence, machine learning, generative AI, automated decision systems, or similar technologies in performing the Services:

1. Vendor shall disclose the material use of such technology;

2. Vendor shall not submit Customer Confidential Information to a public AI service without approval;
3. Vendor shall maintain appropriate human oversight;
4. Vendor shall implement measures addressing hallucination, bias, unauthorized disclosure, and model-security risks;
5. Vendor shall maintain records sufficient to explain material automated outputs;
6. Vendor shall not use Customer Data to train a foundation model without express written authorization;
7. Vendor shall notify Customer of material model changes affecting the Services; and
8. Vendor shall remain responsible for outputs generated by AI systems used by Vendor in performing contractual obligations.

Where AI-generated content is used in a Deliverable, Vendor shall identify material AI-generated components upon request.

18. CONFIDENTIALITY

The receiving Party shall:

- a. protect Confidential Information using at least reasonable care;
- b. disclose Confidential Information only to personnel and approved contractors who need to know it;
- c. use Confidential Information solely for purposes of this Agreement; and
- d. promptly notify the disclosing Party of unauthorized disclosure.

Confidentiality obligations shall survive termination for **five years**.

Trade secrets shall remain protected for so long as they qualify as trade secrets under Applicable Law.

19. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

Confidential Information does not include information that the receiving Party demonstrates:

- a. was publicly available without breach;
- b. was lawfully known before disclosure;
- c. was independently developed without use of Confidential Information; or

d. was lawfully received from a third party without confidentiality restrictions.

If disclosure is legally compelled, the receiving Party shall, where legally permitted, provide advance notice and reasonably cooperate with protective measures.

20. CUSTOMER AUDIT AND REGULATORY ACCESS

Where a governmental authority, regulator, statutory auditor, or judicial authority is legally entitled to inspect relevant records, Vendor shall reasonably cooperate.

Vendor shall not obstruct a lawful regulatory inquiry concerning Services performed for Customer.

Where a regulator requires Customer to demonstrate Vendor's compliance, Vendor shall provide reasonable assistance at no additional charge where the request relates directly to Vendor's contractual obligations.

21. BUSINESS CONTINUITY AND DISASTER RECOVERY

Vendor shall maintain a documented Business Continuity Plan ("**BCP**") and Disaster Recovery Plan ("**DRP**").

For Critical Production Services:

Recovery Point Objective: 30 minutes

Recovery Time Objective: 4 hours

Vendor shall test the DRP at least annually.

Customer may request a summary of test results.

Material failures identified during testing shall be remediated within a commercially reasonable period agreed by the Parties.

22. BACKUP

Vendor shall maintain:

- daily backups;
- encrypted backup storage;

- geographically separated recovery capability where required by the applicable SOW;
- access-controlled backup systems; and
- periodic restoration testing.

Vendor shall not treat successful backup creation as proof of recoverability unless restoration testing has been performed.

23. INSURANCE

Vendor shall maintain, at its own expense:

1. commercial general liability insurance;
2. professional indemnity/errors and omissions insurance;
3. cyber liability insurance;
4. workers' compensation coverage as required by Applicable Law; and
5. such additional insurance as specified in an SOW.

Upon request, Vendor shall provide certificates of insurance.

Insurance shall not reduce or replace Vendor's contractual liability.

24. INDEMNIFICATION BY VENDOR

Vendor shall defend, indemnify, and hold harmless Customer, its Affiliates, directors, officers, employees, and agents against third-party claims arising from:

- a. infringement or alleged infringement of intellectual property rights by the Services;
 - b. Vendor's breach of confidentiality;
 - c. Vendor's violation of Applicable Law;
 - d. bodily injury or property damage caused by Vendor's negligence or willful misconduct;
 - e. fraud or fraudulent misrepresentation by Vendor;
 - f. unauthorized disclosure of Customer Data caused by Vendor's failure to comply with its security obligations; and
 - g. employment claims arising from Vendor personnel.
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25. INDEMNIFICATION PROCEDURE

The indemnified Party shall:

1. promptly notify the indemnifying Party;
2. provide reasonable cooperation;
3. permit the indemnifying Party to control the defense, subject to the indemnified Party's reasonable approval of counsel.

The indemnifying Party shall not settle a claim where the settlement:

- admits liability on behalf of the indemnified Party;
- imposes a non-monetary obligation;
- restricts the indemnified Party's operations; or
- fails to provide an unconditional release,

without the indemnified Party's prior written consent.

26. INDEMNIFICATION BY CUSTOMER

Customer shall indemnify Vendor against third-party claims arising solely from Customer's unlawful use of the Services or Customer-provided materials, except to the extent the claim resulted from Vendor's modification, misuse, or combination of such materials.

27. LIMITATION OF LIABILITY

Except for Excluded Claims defined below, neither Party's aggregate liability arising out of this Agreement shall exceed **100% of the fees paid or payable under the affected SOW during the preceding twelve months**.

For purposes of this clause, "**Excluded Claims**" means:

- a. fraud;
- b. willful misconduct;
- c. death or personal injury caused by negligence;
- d. infringement of intellectual property rights;
- e. breach of confidentiality;

- f. unauthorized processing or disclosure of Personal Data;
- g. indemnification obligations under Section 24(a);
- h. amounts expressly payable under an SOW; and
- i. liability that cannot legally be limited.

However, notwithstanding the foregoing, liability for a Security Incident shall be capped at two times the fees paid or payable under the affected SOW during the preceding twelve months.

The Parties acknowledge that the preceding sentence specifically modifies the general exclusion for confidentiality and data protection claims.

28. EXCLUSION OF INDIRECT DAMAGES

Except in relation to:

- fraud;
- willful misconduct;
- confidentiality breaches;
- intellectual-property infringement;
- data-protection violations;
- indemnification obligations; or
- amounts payable to third parties,

neither Party shall be liable for indirect, incidental, special, punitive, exemplary, or consequential damages, including loss of anticipated profits.

For avoidance of doubt, reasonable third-party remediation expenses incurred as a direct consequence of a Vendor Security Incident shall not be considered consequential damages solely because they arise after the Incident.

29. WARRANTIES

Vendor warrants that:

- a. it has authority to enter into this Agreement;
- b. Services shall materially conform to specifications;
- c. Vendor shall comply with Applicable Law;

- d. Vendor shall maintain required licenses;
- e. Deliverables shall not knowingly contain malicious code;
- f. Vendor shall not knowingly infringe third-party intellectual property rights; and
- g. Vendor shall not intentionally introduce functionality designed to disable Customer's lawful use of the Services.

Except as expressly stated, the Services are provided without implied warranties to the maximum extent permitted by Applicable Law.

30. PERSONNEL

Vendor shall maintain sufficient personnel to perform the Services.

Customer may reasonably request removal of Vendor personnel where there are documented concerns relating to:

- security;
- misconduct;
- conflict of interest;
- material performance deficiencies; or
- unauthorized access.

Vendor shall make commercially reasonable efforts to provide replacement personnel with comparable qualifications.

31. NON-SOLICITATION

During the Agreement and for twelve months thereafter, neither Party shall knowingly solicit for employment personnel of the other Party who are materially involved in the Services.

This restriction shall not apply to general advertisements or recruitment campaigns not specifically targeted at the other Party's personnel.

32. COMPLIANCE

Vendor shall comply with Applicable Law concerning:

- anti-bribery;
- anti-corruption;
- sanctions;
- export controls;
- labor;
- environmental requirements;
- information security;
- privacy;
- intellectual property;
- tax;
- competition; and
- records retention.

Vendor shall maintain appropriate policies designed to prevent bribery and corruption.

33. CONFLICTS OF INTEREST

Vendor shall disclose any actual or reasonably foreseeable conflict of interest that could materially affect the Services.

Vendor shall not use confidential information obtained from Customer to benefit another customer where doing so would create a conflict with Customer's interests.

34. RECORDS

Vendor shall maintain complete and accurate records relating to:

- Services;
- SLA performance;
- security incidents;
- access logs;
- invoices;
- subcontractors;
- data-processing activities;
- audit findings; and
- material changes.

Records shall be retained for seven years unless Applicable Law requires longer retention.

35. RIGHT TO SUSPEND

Customer may require Vendor to suspend access to Customer systems where Customer reasonably believes continued access creates an immediate material security or compliance risk.

Vendor shall cooperate in implementing the suspension.

Suspension shall not automatically constitute termination.

36. TERMINATION FOR CAUSE

Either Party may terminate this Agreement or an affected SOW upon written notice if the other Party:

- a. commits a Material Breach and fails to cure it within 30 days;
- b. commits a breach incapable of cure;
- c. becomes insolvent;
- d. enters liquidation other than for a bona fide corporate restructuring;
- e. ceases material business operations; or
- f. becomes subject to a legal restriction preventing performance.

Customer may terminate immediately where Vendor commits a material confidentiality or data-security breach that reasonably cannot be adequately remediated.

37. TERMINATION FOR CONVENIENCE

Customer may terminate an SOW for convenience upon **90 days' written notice**.

Unless otherwise stated in the applicable SOW, Customer shall pay:

- 1. undisputed fees for Services performed through the termination date;
- 2. approved, non-cancellable third-party commitments incurred specifically for Customer; and
- 3. reasonable transition assistance charges expressly agreed in advance.

Vendor shall not charge lost future profits on unperformed Services unless expressly stated in an SOW.

38. VENDOR TERMINATION RIGHTS

Vendor may terminate an affected SOW for convenience only where expressly permitted by the SOW.

If Vendor is entitled to terminate for convenience, Vendor shall provide at least **180 days' prior written notice** and shall continue transition support during such period.

Vendor shall not terminate Critical Production Services solely due to a disputed invoice.

39. TRANSITION ASSISTANCE

Upon expiry or termination, Vendor shall provide reasonable transition assistance for up to **six months**.

Transition assistance may include:

- knowledge transfer;
- documentation;
- data export;
- system configuration information;
- credential transfer;
- architecture information;
- operational runbooks;
- inventory information; and
- reasonable cooperation with a replacement provider.

Transition Services shall be charged at the rates specified in Schedule 3 unless termination resulted from Vendor's Material Breach, in which case reasonable transition assistance required to mitigate such breach shall be provided without additional professional-services fees.

40. DATA RETURN AND DELETION

Within 30 days following termination, Vendor shall provide Customer with an export of Customer Data in a commercially reasonable machine-readable format.

Within 60 days thereafter, Vendor shall securely delete Customer Data from active systems, subject to:

- a. legal retention requirements;
- b. immutable backups maintained under ordinary disaster-recovery procedures; and
- c. data necessary to establish or defend legal claims.

Backup copies shall be isolated from ordinary processing and deleted according to Vendor's standard retention cycle, not exceeding 180 days unless legally required.

41. PUBLICITY

Vendor shall not use Customer's name, logo, trademarks, or relationship as a customer reference, marketing statement, case study, press release, or public announcement without Customer's prior written consent.

42. ASSIGNMENT

Neither Party may assign this Agreement without prior written consent, except that Customer may assign the Agreement to an Affiliate or successor in connection with a merger, reorganization, or transfer of substantially all relevant business assets.

Vendor may not assign the Agreement to an entity that is a direct competitor of Customer without Customer's consent.

Any purported assignment contrary to this Section shall be void.

43. CHANGE IN CONTROL

Vendor shall provide Customer with at least 30 days' prior notice of any proposed change in control.

If a change in control results in Vendor becoming controlled by a direct competitor of Customer or an entity reasonably presenting a material security or conflict-of-interest concern, Customer may terminate the affected SOW upon 60 days' notice.

44. FORCE MAJEURE

Neither Party shall be liable for delay caused by events beyond its reasonable control, including:

- natural disasters;
- war;
- terrorism;
- government action;
- widespread telecommunications failure;
- epidemic or pandemic;

- labor disruptions not limited to the affected Party; or
- significant infrastructure failures.

Force Majeure shall not excuse:

- a. payment obligations for Services already provided;
- b. confidentiality obligations;
- c. data-protection obligations;
- d. disaster-recovery obligations to the extent the affected systems remain reasonably available; or
- e. obligations that can reasonably be performed through commercially reasonable contingency arrangements.

A Party affected by Force Majeure shall promptly notify the other Party and implement its BCP.

45. DISPUTE ESCALATION

The Parties shall initially attempt to resolve disputes through operational representatives.

If unresolved within ten Business Days, the dispute shall be escalated to designated senior executives.

If unresolved within a further 20 Business Days, either Party may commence formal dispute-resolution proceedings.

Nothing prevents either Party from seeking urgent injunctive or equitable relief.

46. GOVERNING LAW

This Agreement shall be governed by the laws of **India**.

Subject to the dispute-resolution provisions below, the courts at **Mumbai, Maharashtra** shall have exclusive jurisdiction.

47. ARBITRATION

Any dispute not resolved through escalation shall be finally resolved by arbitration under the Arbitration and Conciliation Act, 1996.

The tribunal shall consist of three arbitrators.

Each Party shall appoint one arbitrator, and the two appointed arbitrators shall appoint the presiding arbitrator.

The seat and venue of arbitration shall be **Mumbai, Maharashtra**.

The language shall be English.

The arbitral award shall be final and binding.

48. INTERIM RELIEF

Nothing prevents a Party from seeking interim or emergency relief from a competent court to:

- protect Confidential Information;
 - prevent unauthorized disclosure of Customer Data;
 - protect intellectual property;
 - preserve evidence;
 - prevent unauthorized system access; or
 - prevent imminent irreparable harm.
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49. NOTICES

Formal notices under this Agreement shall be provided in writing to the addresses specified in the applicable SOW or other formally designated notice information.

Operational communications, incident notifications, and service tickets shall not constitute legal notices unless expressly designated as such.

50. ENTIRE AGREEMENT

This Agreement, together with executed SOWs and Schedules, constitutes the entire agreement between the Parties concerning its subject matter.

It supersedes prior proposals, discussions, representations, and understandings concerning such subject matter.

51. AMENDMENTS

No amendment shall be effective unless documented in writing and signed by authorized representatives of both Parties.

Operational procedures may be updated through the agreed change-management process provided that such update does not materially modify legal rights or obligations.

52. SEVERABILITY

If any provision is held invalid or unenforceable, it shall be modified to the minimum extent necessary to make it enforceable.

The remaining provisions shall remain in effect.

53. WAIVER

Failure to enforce a provision shall not constitute a waiver.

A waiver must be express and in writing.

54. COUNTERPARTS AND ELECTRONIC SIGNATURE

This Agreement may be executed in counterparts.

Electronic signatures shall have the same effect as original signatures to the extent permitted by Applicable Law.

55. SURVIVAL

The following provisions shall survive termination:

- confidentiality;
- intellectual property;
- data protection;
- security obligations relating to retained data;
- audit and record-retention obligations;

- indemnification;
 - limitation of liability;
 - dispute resolution;
 - governing law;
 - transition assistance;
 - data return and deletion; and
 - any provisions which by their nature are intended to survive.
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SCHEDULE 1 — STATEMENT OF SERVICES

A. Managed Infrastructure

Vendor shall provide:

1. infrastructure monitoring;
2. operating-system support;
3. database monitoring;
4. capacity management;
5. patch management;
6. backup monitoring;
7. configuration management;
8. incident response;
9. performance monitoring; and
10. monthly operational reporting.

B. Security Operations

Vendor shall provide:

- security-event monitoring;
- vulnerability scanning;
- endpoint monitoring;
- threat intelligence integration;
- incident triage;
- security reporting;
- privileged-access monitoring; and
- security incident coordination.

C. Application Support

Vendor shall provide Level 1, Level 2, and Level 3 support.

Level 3 support shall include root-cause analysis for repeated P1 incidents.

SCHEDULE 2 — SERVICE LEVEL AGREEMENT

Monthly Availability

Target: 99.90%

Critical Incident

Initial response: 15 minutes.

Escalation to senior technical personnel: 30 minutes.

Executive notification: 60 minutes.

Root-cause analysis: within five Business Days after restoration.

Repeated Incidents

Three P1 incidents involving the same root cause within a rolling 90-day period shall trigger a mandatory corrective-action plan.

SCHEDULE 3 — COMMERCIAL TERMS

Annual Contract Value

INR 8,40,00,000 excluding applicable taxes.

Payment

Monthly in arrears.

Professional Services

Standard rate: INR 18,000 per person-hour.

Specialist rate: INR 28,000 per person-hour.

Emergency services requested outside agreed operating hours may be charged at 1.5 times the applicable rate, provided Customer has approved the emergency engagement.

SCHEDULE 4 — DATA PROTECTION AND SECURITY ADDENDUM

1. Processing Instructions

Vendor shall process Personal Data only for:

- hosting;
- support;
- monitoring;
- troubleshooting;
- service delivery;
- security;
- backup; and
- other documented Customer instructions.

2. Security Controls

Vendor shall maintain:

- encryption;
- MFA;
- role-based access;
- logging;
- vulnerability management;
- secure software-development procedures;
- personnel screening where legally permitted;
- incident response;
- disaster recovery; and
- secure deletion.

3. Data Subject Requests

Vendor shall reasonably assist Customer in responding to legally valid requests concerning Personal Data.

4. Regulatory Cooperation

Vendor shall reasonably assist Customer with regulatory inquiries relating to Vendor's processing activities.

SCHEDULE 5 — RISK AND COMPLIANCE REPORTING

Vendor shall provide quarterly reports containing:

1. SLA performance;
2. security incidents;
3. vulnerability status;
4. outstanding audit findings;
5. subcontractor changes;
6. data-processing locations;
7. privileged-access statistics;
8. backup restoration results;
9. DR testing status;
10. material regulatory developments affecting the Services;
11. unresolved compliance issues; and
12. remediation plans.

Any unresolved Critical security finding older than 30 days shall be escalated to Customer's designated executive.

SCHEDULE 6 — ACCEPTANCE PROCEDURE

Customer shall review a Deliverable within ten Business Days after delivery.

Customer may:

- a. accept the Deliverable;
- b. reject it with specific reasons; or
- c. accept it subject to identified minor defects.

Vendor shall correct material defects without additional charge.

If Customer does not respond within the review period, the Deliverable shall be deemed **provisionally accepted solely for purposes of allowing dependent project activities to continue**, but shall not constitute waiver of latent defects, security vulnerabilities, intellectual-property claims, or non-conformities not reasonably discoverable during the review period.

SCHEDULE 7 — BUSINESS CONTINUITY REQUIREMENTS

Vendor shall maintain:

Requirement	Target
RTO	4 hours
RPO	30 minutes
Annual DR Tests	Minimum 1
Backup Encryption	Mandatory
Critical Backup Restoration Test	Quarterly
BCP Review	Annual
Critical Supplier Review	Annual

SCHEDULE 8 — SECURITY INCIDENT SEVERITY

Critical

Confirmed unauthorized access to Customer production systems or material Customer Data.

High

Material security vulnerability with credible exploitation risk.

Medium

Security weakness requiring remediation but without evidence of compromise.

Low

Non-material security issue with limited operational impact.

Severity may be reassessed as additional information becomes available.

SCHEDULE 9 — VENDOR MANAGEMENT REQUIREMENTS

Vendor shall maintain:

- named account manager;
 - service delivery manager;
 - security contact;
 - escalation manager;
 - 24x7 P1 contact;
 - documented escalation matrix;
 - subcontractor register;
 - asset inventory;
 - service dependency map; and
 - annual business continuity certification.
-

SCHEDULE 10 — SPECIAL CONDITIONS

10.1 Regulatory Change

If Applicable Law materially changes the cost or technical requirements of the Services, Vendor shall notify Customer within 15 Business Days.

The Parties shall negotiate a reasonable adjustment.

Vendor shall continue complying with Applicable Law during negotiations.

10.2 Critical Infrastructure

Where Services support systems designated by Customer as critical, Vendor shall maintain enhanced access controls and disaster-recovery procedures.

10.3 Material Supplier Failure

Vendor shall notify Customer of any material failure of a third-party supplier that may reasonably affect Critical Production Services.

SCHEDULE 11 — CONTRACTUAL RISK MATRIX

The following table is included **solely for evaluation benchmarking and shall NOT be treated as a contractual risk assessment or amendment to the Agreement.**

ID	Potential Evaluation Issue	Relevant Section
R-01	Liability cap contains multiple exceptions and a separate security cap	§§27–28
R-02	Security incident notification deadline	§11
R-03	Ambiguous interaction between general liability exclusions and security cap	§27
R-04	Vendor indemnification for data/security incidents	§24
R-05	Customer termination for convenience	§37
R-06	Vendor termination restrictions	§38
R-07	Broad audit rights after security incidents	§9
R-08	Seven-year record retention	§§9, 34
R-09	Subcontractor objection mechanism	§14
R-10	Cross-border data-transfer restriction	§13
R-11	AI training restriction	§17
R-12	AI-generated deliverable disclosure	§17
R-13	Customer ownership of bespoke Deliverables	§15
R-14	Vendor retained rights over reusable tools	§15.4
R-15	Open-source reciprocal-license restriction	§16
R-16	99.90% availability requirement	§5
R-17	SLA credits capped at 25%	§5.3
R-18	SLA credits not exclusive for certain breaches	§5.3
R-19	DR RTO/RPO requirements	§§21, Schedule 7
R-20	Transition support for six months	§39
R-21	Free transition assistance following certain Vendor breaches	§39
R-22	Change-of-control termination right	§43
R-23	Force majeure exceptions	§44
R-24	Mumbai exclusive court jurisdiction	§46
R-25	Three-member arbitration tribunal	§47

ID	Potential Evaluation Issue	Relevant Section
R-26	Interim injunctive relief	§48
R-27	Deemed/provisional acceptance mechanism	Schedule 6
R-28	Regulatory change mechanism without automatic pricing adjustment	Schedule 10
R-29	Vendor remains responsible for Subcontractors	§14
R-30	Data deletion exception for immutable backups	§40

SCHEDULE 12 — DELIBERATELY COMPLEX CROSS-REFERENCE CONDITIONS

For evaluation purposes, the Parties acknowledge the following contractual relationships:

1. The liability cap in Section 27 must be interpreted together with Section 28.
2. SLA credits under Section 5 do not become the exclusive remedy where the underlying event constitutes a Material Breach, Security Incident, confidentiality breach, or indemnifiable claim.
3. The data-security obligations in Schedule 4 supplement, rather than replace, Section 10.
4. Section 11 establishes the notification deadline, while Schedule 8 determines the severity classification.
5. Section 39 modifies the commercial consequences of termination based upon whether termination resulted from Vendor's Material Breach.
6. Section 15 distinguishes Customer-owned bespoke Deliverables from Vendor Background IP and Vendor Tools.
7. Section 17 applies to AI technology used by Vendor even where such technology is provided through a third-party platform.
8. Section 14 does not relieve Vendor of liability merely because the relevant act or omission was committed by a Subcontractor.
9. Section 44 does not automatically excuse obligations capable of performance through reasonable contingency measures.
10. Schedule 6's provisional acceptance mechanism does not waive latent security, IP, or legal defects.

SIGNATURE PAGE

For and on behalf of:

TATA INDUSTRIES LIMITED

Name: _____

Title: _____

Signature: ____

Date: _____

APEX DIGITAL INFRASTRUCTURE SERVICES PRIVATE LIMITED

Name: _____

Title: _____

Signature: ____

Date: _____

END OF SYNTHETIC AGREEMENT

Evaluation Note: This document is fictional and created for testing legal-document intelligence, RAG retrieval, clause extraction, obligation extraction, risk classification, cross-reference resolution, citation generation, and legal-question answering systems. It does not represent an actual Tata Group contract, policy, legal position, or transaction.